

§ 81.15 Findings.

(a) Where the court determines that the person agrees to the appointment and that the appointment is necessary, the court shall make the following findings on the record:

1. the person's agreement to the appointment;
2. the person's functional limitations which impair the person's ability to provide for personal needs or property management;
3. the necessity of the appointment of a guardian as a means of providing for personal needs and/or property management for the person;
4. the specific powers of the guardian which constitute the least restrictive form of intervention consistent with the person's functional limitations; and
5. the duration of the appointment.

(b) Where the petition requests the appointment of a guardian to provide for the personal needs for a person alleged to be incapacitated and the court determines that such person is incapacitated and that the appointment is necessary, the court shall make the following findings on the record:

1. the person's functional limitations which impair the person's ability to provide for personal needs;
2. the person's lack of understanding and appreciation of the nature and consequences of his or her functional limitations;
3. the likelihood that the person will suffer harm because of the person's functional limitations and inability to adequately understand and appreciate the nature and consequences of such functional limitations;
4. the necessity of the appointment of a guardian to prevent such harm;

5. the specific powers of the guardian which constitute the least restrictive form of intervention consistent with the findings of this subdivision;

6. the duration of the appointment; and

7. whether the incapacitated person should receive copies of the initial and annual report.

(c) Where the petition requests the appointment of a guardian for property management for the person alleged to be incapacitated, and the court determines that the person is incapacitated and that the appointment of a guardian is necessary, the court shall make the following findings on the record:

1. the type and amount of the property and financial resources of the person alleged to be incapacitated;

2. the person's functional limitations which impair the person's ability with respect to property management;

3. the person's lack of understanding and appreciation of the nature and consequences of his or her functional limitations;

4. the likelihood that the person will suffer harm because of the person's functional limitations and inability to adequately understand and appreciate the nature and consequences of such functional limitations;

5. any additional findings that are required under section 81.21 of this article;

6. the necessity of the appointment of a guardian to prevent such harm;

7. if so, the specific powers of the guardian which constitute the least restrictive form of intervention consistent with the person's

functional limitations and the likelihood of harm because of the person's inability to adequately understand and appreciate the nature and consequences of such functional limitations;

8. the duration of the appointment; and

9. whether the incapacitated person should receive copies of the initial and annual report.